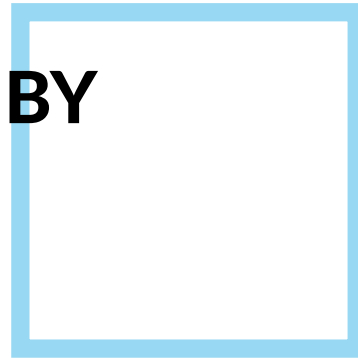


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BRITISH CITIZENSHIP BY NATURALISATION



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BRITISH CITIZENSHIP BY NATURALISATION

If you are at least 18 years old and have been granted indefinite leave to remain or have acquired a right of permanent residence in the UK, you may be eligible to apply for British Citizenship by Naturalisation.

Can I apply for British Citizenship by Naturalisation?

In order to be naturalised as a British citizen, you will need to meet certain statutory criteria with regard to your immigration status, length of residence in the UK, future intentions, knowledge of the English language and life in the UK, and good character. The requirements for British Citizenship by Naturalisation vary slightly depending on whether you are married to a British citizen or not.

Apply for UK Citizenship: Not married to a British citizen

If you are not married to a British citizen (or do not wish to rely on your marriage to a British citizen) the Home Office must be satisfied that:

- You were in the UK on the day five years before the date of your application;
- You have not been absent from the UK for more than 450 days during the intervening five year period;
- You have not been in the UK in breach of the immigration laws at any time during that five year period;
- You have not been absent from the UK for more than 90 days during the 12 month period immediately preceding the date of your application;
- You are not subject to any limit on the period for which you may remain in the UK have not been subject to any such time limit at any time during the 12 month period immediately preceding the date of your application;

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- You are of good character;
- You have sufficient knowledge of the English, Welsh or Scottish Gaelic language; <https://www.google.co.uk/search?q=richmond+chambers+in>
- (2) You have taken and passed the Life in the UK test; and
- Your intentions are that if your application is successful your home (or principal home) will be in the UK.

Apply for UK Citizenship: Married to a British citizen

If you are married to a British citizen, the Home Office must be satisfied that:

- You were in the UK on the day three years before the date of your application;
- You have not been absent from the UK for more than 270 days during the intervening three year period;
- You have not been in the UK in breach of the immigration laws at any time during that three year period;
- You have not been absent from the UK for more than 90 days during the 12 month period immediately preceding the date of your application;
- You are not subject to any time limit on the period for which you may remain in the UK at the date of your application;
- You are of good character;
- You have sufficient knowledge of the English, Welsh or Scottish Gaelic language; and
- You have taken and passed the Life in the UK test.

The exact requirements you will need to satisfy will vary depending on your circumstances. You may want to speak to an immigration lawyer for expert advice.

To discuss your application for Naturalisation as a British Citizen with one of our immigration barristers, contact our British citizenship lawyers on 0203 617 9173 or complete our enquiry form below.

Can I apply for British Citizenship straight after ILR?

If you are married to a British citizen, you can apply for British Citizenship by Naturalisation as soon as you have been granted Indefinite Leave to Remain. You will need to satisfy all of the other requirements for British Citizenship by Naturalisation outlined above. If you are not married to a British citizen, you will need to have been free of immigration time restrictions for at least 12 months immediately preceding the date of your application. This means that you will be eligible to apply for British Citizenship by Naturalisation 12 months after being granted ILR.

How

(<https://www.google.co.uk>

(n) order to qualify for UK Citizenship, you will need to have spent not more than 90 days in

What is the good character requirement for British Citizenship?

The British Nationality Act 1981 requires any person who wishes to naturalise as a British Citizen to be of 'good character'. 'Good character' is not defined in the Act, but Home Office nationality policy guidance explains how the **'good character' requirement**

(<https://immigrationbarrister.co.uk/good-character-what-has-changed/>) will be assessed.

This contains a non-exhaustive list of conduct that will mean that an applicant is not of 'good character' including criminality, terrorism, financial soundness, notoriety, deception and dishonesty and immigration-related matters.

It is important that the good character requirement is considered carefully in any application for British Citizenship by Naturalisation as apparently innocuous matters can lead to an adverse decision. Advice from an immigration lawyer will ensure that any potential good character issues are identified and properly addressed as part of your UK Citizenship application.

Is there any flexibility in the criteria for Naturalisation as a British Citizen?

The Secretary of State has a discretion to treat applicants for UK Citizenship as meeting some of the requirements even where those requirements are not met. This includes:

- The permitted absence requirements (e.g. if you have been absent from the UK for more than 90 days in the 12 month period prior to your application);
- The 12 month 'no time limit' requirement;
- The requirement not to have been in the UK in breach of the immigration laws at any time during the three or five year qualifying period.

The Secretary of State has a discretion to waive the language and life in the UK requirements on grounds of the applicant's age, physical or mental condition.

The Secretary of State has no discretion to waive, or to treat applicants as meeting, the following requirements:

- To have been in the UK at the start of the three or five year qualifying period (although there is some discretion in relation to members of the armed forces);

- To be free of any restriction on the period you may stay in the UK (i.e. to have been granted indefinite leave to remain in the UK or to have acquired a right of permanent residence);
- To be of good character.

It is important that any application for British Citizenship requiring an exercise of discretion is prepared and presented carefully. Advice from an immigration lawyer should be sought at an early stage.

- **British Citizenship & Naturalisation – How To Apply**
(<https://immigrationbarrister.co.uk/british-citizenship-naturalisation-how-to-apply/>)
- **Naturalisation as a British Citizen – A wide discretion**
(<https://immigrationbarrister.co.uk/naturalisation-as-a-british-citizen-a-wide-discretion/>)
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(<https://immigrationbarrister.co.uk/applications-for-british-citizenship-by-eu-nationals/>)
- **How does EU Settled Status fit with Naturalisation?**
(<https://immigrationbarrister.co.uk/brexit-how-does-eu-settled-status-fit-with-naturalisation-lawful-residence-and-the-good-character-requirement/>)

Can EEA / EU Nationals and their family members apply for Naturalisation as a British Citizen?

Yes, EEA nationals and their family members can apply for UK Citizenship. Since 30 June 2021, they need to hold **Settled Status** (<https://immigrationbarrister.co.uk/personal-immigration/eea-nationals-family/eu-settlement-scheme-settled-status/>) at the date of application (or have made an application for Settled Status prior to 30 June and otherwise have a right of permanent residence), and to demonstrate that they have either held Settled Status or a right of permanent residence for 12 months prior to the date of application. They will not need a document to show they held the right of permanent residence but will need to provide relevant evidence.

EEA nationals and their family members can also apply for naturalisation if they have been granted indefinite leave to remain under the Immigration Rules on another basis for 12 months prior to the date of application, are entitled by virtue of diplomatic status to exemption from UK immigration control or benefit as an Irish national.

What about BOTC's, BNO's, BOC's etc?

If you are a British Overseas Territories Citizen, a British National (Overseas), a British Overseas citizen, a British subject, or a British protected person then you are not a British citizen; however naturalisation is unlikely to be suitable for you as you are likely to have an alternative route to **British citizenship through registration** ([/personal-immigration/british-citizenship/british-citizenship-registration/](https://immigrationbarrister.co.uk/personal-immigration/british-citizenship/british-citizenship-registration/)).

Who can be a referee in a British Citizenship application?

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(<https://www.google.co.uk>

You will need to provide two referees when you apply for British Citizenship by Naturalisation. One referee should be a person of any nationality who has professional standing, such as a minister of religion, civil servant, or a member of a professional body such as an accountant, solicitor or barrister (who is not representing you with the application). The other referee must normally be the holder of a British citizen passport and either a professional person or over the age of 25.

How much does it cost to apply for Naturalisation?

The Home Office application fee for an application for Naturalisation as a British Citizen is £1,500. You will need to spend a further £130 to arrange a citizenship ceremony (including the administration of a citizenship oath and pledge at the ceremony). These figures are correct as at 29 March 2019.

How long does it take to get British Citizenship?

Applications for Naturalisation as a British Citizen can take up to 6 months to be determined. However, we typically receive UK Citizenship decisions from the Home Office within about 3 months.

Can I leave the UK while waiting for my UK Citizenship application to be processed?

Yes, once you have applied for British Citizenship, you can travel outside the UK while your application is being considered. When you apply for British Citizenship, you can submit a full certified copy of your passport and keep your original passport with you. You can then use your original valid passport to travel overseas.

A naturalisation application does not provide you with immigration permission and you will need to demonstrate an entitlement to re-enter the UK at the UK border. Therefore, you should also travel with evidence of your ILR, or other valid immigration status.

You should keep in mind that you will usually be required to enrol your biometric information within 45 days of submitting your British citizenship application. This may involve attending a biometrics appointment in person. Failure to provide biometric information when required will invalidate your application.

You may also wish to keep in mind that if your British Citizenship application is approved, you will have 90-days in which to arrange attendance at a citizenship ceremony in the UK.

What happens after I have applied for British Citizenship?

(<https://www.google.co.uk>)

If your application for naturalisation as a British citizen is successful, you will have to attend a citizenship ceremony. At the end of the ceremony you will be presented with your certificate of naturalisation as a British citizen. You will then be able to **apply for a British passport** (<https://www.gov.uk/apply-renew-passport>).

How our immigration barristers can help

Our immigration barristers and immigration lawyers have experience assisting with all types of nationality matters. Whether you are looking to apply for naturalisation on your own or on the basis of your marriage to a British citizen, our immigration barristers can guide you through the complexities of the UK Citizenship process and British nationality law.

We pride ourselves on being approachable and proactive in understanding and meeting our clients' needs. We are a highly driven team, dedicated to providing clear and reliable immigration and nationality advice as part of a professional and friendly service.

WE CAN ALSO ASSIST WITH

Identifying alternative routes to British citizenship



Requests for reconsideration of decisions to refuse British citizenship



Judicial reviews of decisions to refuse British citizenship



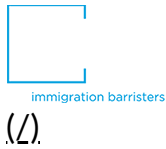
Loss of British citizen status



WHAT CAN WE HELP YOU WITH?

To discuss your application for Naturalisation as a British Citizen with one of our specialist nationality barristers, contact our British citizenship team on 0203 617 9173 or complete our enquiry form.

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